



Local Government Act (Northern Ireland) 1972

CHAPTER 9

LOCAL GOVERNMENT ACT (NORTHERN IRELAND) 1972

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S.43 rep. by 1973 NI 10
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S.89 rep. by 1992 NI 6

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HOLDING OF MEETINGS

- 1

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— MEMBERS SECTION 18(2) OF THE INTERPRETATION ACT
(NORTHERN IRELAND) 1954 ...

MEMBERS

- 1 Section 18(2) of the Interpretation Act (Northern Ireland) 1954
(except, ...

ALLOWANCES

- 2 The Staff Commission may pay— to its chairman such remuneration; ...
2A The Staff Commission may make payments to its members for, ...

EXPENSES

- 3 Before the commencement of each financial year the Staff
Commission ...
4 In preparing the estimate mentioned in paragraph 3, the Staff ...
5 The Staff Commission shall, with the approval of the Ministry, ...
6 Any question arising in connection with an apportionment under
paragraph ...
7 The amount apportioned under paragraph 5 as arising from matters ...
7A The amount apportioned under paragraph 5 as arising from matters ...
8 Any sum which is payable by a council [or, ...
9 The amount apportioned under paragraph 5 as other expenditure shall ...

BORROWING

- 10 The Staff Commission may borrow, by way of temporary loan ...

ACCOUNTS, ETC., AND AUDIT

- 11 The Staff Commission shall keep such accounts and records as ...
12 The accounts of the Staff Commission shall be audited annually ...

INFORMATION, REPORTS AND RETURNS

- 13 The Staff Commission shall— make such reports and returns, and ...

SCHEDULE 4 — LOCAL GOVERNMENT BOUNDARIES COMMISSIONER
PART I — APPOINTMENT, ETC.

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Interpretation

- 1 In this Schedule “a Commissioner ” means a Local ...

Appointment

- 2 Section 18(2) of the Interpretation Act (Northern Ireland) 1954 applies ...

Assistant Commissioners and assessors

- 3 The Department may, at the request of a Commissioner, appoint ...

Officers

- 4 The Department shall appoint— a secretary; and such other officers ...

Remuneration and expenses

- 5 The remuneration and expenses of a Commissioner, any Assistant Commissioners ...

PART II — PROCEDURE

Procedure for Commissioner appointed under section 50(1)(a)

- 6 This paragraph applies where a Commissioner is appointed under section ...

Procedure for Commissioner appointed under section 50(1)(b)

- 7 This paragraph applies where a Commissioner is appointed under section ...

Procedure for Commissioner appointed under section 50(4)

- 8 This paragraph applies where a Commissioner is appointed under section ...

Commissioner's procedure - general

- 9 In relation to a notice published by a Commissioner under ...
- 10 A Commissioner may direct any hearing under this Schedule to ...
- 11 A Commissioner may, if he thinks fit, submit interim reports ...
- 12 Subject to paragraphs 7 to 11, a Commissioner may regulate ...
- 13 Every document purporting to be an instrument made or issued ...
- PART III — RULES IN ACCORDANCE WITH WHICH
RECOMMENDATIONS OF A COMMISSIONER ARE ...**
- 14 Regard shall be had to the desirability of determining district ...
- 15 A townland shall not, except where in the opinion of ...
- 16 As far as practicable— a district shall not be wholly ...
- 17 In determining the number and boundaries of wards within a ...
- 18 Subject to sub-paragraphs (2) and (3)— in the district of ...
- 19 Within any one district there shall, as far as is ...

SCHEDULE 5 —

- 1 If a council determines to repay by means of a ...
- 2 Every sum paid to a sinking fund shall, unless applied ...

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- 3 In the case of an accumulating sinking fund, the interest ...
- 4 A council may at any time apply the whole or ...
- 5 Any surplus of a sinking fund remaining after the discharge ...
- 6 If at any time it appears to the council that ...
- 7 If the council desires to accelerate the repayment of any ...
- 8 If the amount in a sinking fund, together with the ...
- 9 If at any time the amount in a sinking fund, ...

SCHEDULE 6 — ACQUISITION OF LAND BY VESTING ORDER

— PRELIMINARY PROCEDURE A COUNCIL WHICH PROPOSES TO ACQUIRE LAND OTHERWISE ...

PRELIMINARY PROCEDURE

- 1 A council which proposes to acquire land otherwise than by ...
- 2 Notice of the application, in such form and manner as ...

MAKING OF VESTING ORDER

- 3 After the expiration of one month from the date of ...
- 4 A vesting order shall contain such provisions as the Ministry ...

VALIDITY AND OPERATION OF VESTING ORDERS

- 5 The following provisions of this paragraph shall have effect with ...
- 6 Subject to sub-paragraph (3), a vesting order shall operate, without ...
- 7 A vesting order, or the title created by such an ...
- 8 Where a vesting order relates to any land forming part ...
- 9 On and after the date of vesting the council or ...
- 10 Section 92 of the Lands Clauses Consolidation Act 1845 shall ...

REFERENCE OF DISPUTED CASES TO THE LANDS TRIBUNAL

- 11 As soon as a vesting order has become operative, any ...
- 12 When any question of disputed compensation arises, the council shall ...

SPECIAL POWERS OF THE LANDS TRIBUNAL

- 13 The Lands Tribunal shall have the same power of apportioning ...

SATISFACTION OF CLAIMS

- 14 The council, on paying to any person any compensation (whether ...
- 15 Where the compensation payable (whether the amount thereof has been ...
- 16 Any person claiming to be entitled to any money paid ...
- 17 Where the amount of compensation has been determined but for ...

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18 The council shall pay interest upon the compensation money from ...

PAYMENT OF MINISTRY'S COSTS BY COUNCIL

19 All costs incurred by the Ministry in carrying the provisions ...

INTERPRETATION

20 For the purposes of this Schedule the interest of a ...

SCHEDULE 7 — PROVISIONS APPLIED TO JOINT COMMITTEES

— Schedule 8 —Amendments

— Schedule 9—Repeals

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Changes and effects yet to be applied to :

- s. 1(1) words substituted by [S.I. 2006/1253 \(N.I.\) art. 5\(1\)](#)
- s. 143 words substituted by [2014 c. 8 \(N.I.\) Sch. 9 para. 3](#)